

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Matejcek	Team: Squad #07	CCRB Case #: 201707758	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 08/28/2017 2:30 PM	Location of Incident: East 149th Street and Southern Boulevard	18 Mo. SOL 2/28/2019	Precinct: 40		
Date/Time CV Reported Mon, 08/28/2017 3:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 09/20/2017 4:09 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POF Lisa Reyes	08946	957080	040 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POF Crystal Zalaznick	19369	940883	040 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POF Lisa Reyes	Off. Language: Police Officer Lisa Reyes made remarks to § 87(2)(b) based upon race.			A . Unsubstantiated	

Case Summary

On August 28, 2017, § 87(2)(b) filed this complaint with the 40th Precinct via phone. § 87(2)(b) filed a duplicate of this complaint with the CCRB on September 20, 2017.

At approximately 2:30 p.m. on August 28, 2017, § 87(2)(b) was involved in a car accident at the intersection of East 149th Street and Southern Boulevard in the Bronx. PO Lisa Reyes and PO Crystal Zalaznick of the 40th Precinct responded to the scene. PO Reyes allegedly said “Here you go, white lady” while handing § 87(2)(b) her accident report (**Allegation A: Offensive Language, unsubstantiated**). There were no arrests made or summonses issued as a result of this incident.

Allegation A – Offensive Language: Police Officer Lisa Reyes made remarks to § 87(2)(b) based upon race.

§ 87(2)(b) testified that, following the car accident, she approached the occupants of the other vehicle and told them that they “must not know how to drive.” § 87(2)(b) who is white, believed that the occupants of the vehicle, all of whom were black, perceived this as a racially motivated comment. The occupants of the other vehicle accused § 87(2)(b) of being racist and yelled at her, so she returned to her vehicle in fear and waited for the police. When PO Reyes and PO Zalaznick arrived on scene, § 87(2)(b) told both of them that she felt offended by and scared of the occupants of the other vehicle because she was a white woman by herself in a predominantly black neighborhood. When PO Reyes approached § 87(2)(b) s vehicle to give her the accident report, no one else was in earshot. As PO Reyes handed § 87(2)(b) her accident report, she allegedly stated “Here you go, white lady.” § 87(2)(b) made this allegation in her original complaint with the 40th Precinct, in her duplicate complaint filed with the CCRB, during a phone statement to the CCRB, and during her in-person CCRB interview months later. § 87(2)(b) was offended by the mention of her race. § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

After arriving at the scene of the vehicle accident, PO Reyes and PO Zalaznick gathered basic information about the parties and prepared incident slips. PO Reyes went by herself to § 87(2)(b) s vehicle to hand her this information. During their ensuing conversation, § 87(2)(b) shouted at and interrupted PO Reyes and seemed to have difficulties staying on one topic. § 87(2)(b) was upset that she could only obtain her accident report online or at an NYPD precinct because she lives far from the city. She also stated that she was not at fault for the accident that had just occurred. § 87(2)(b) also stated that, because she is a white woman, she was scared to be in the Bronx surrounded by black people. PO Reyes was taken aback by this statement and testified that it was the first and only time that § 87(2)(b) s race was mentioned during their conversation. PO Reyes told § 87(2)(b) that she was sorry that she felt that way and that, as a police officer and a New Yorker, she does not fear any person based on race, culture, or religion. § 87(2)(b) said “Well good for you” and did not make any additional mention of race. PO Reyes denied referring to § 87(2)(b) as a “white lady” or making any other mention of § 87(2)(b) s race during this incident. § 87(2)(b) never complained that PO Reyes had made such a comment [02 Board Review].

PO Reyes prepared a detailed memo book entry regarding this incident. The entry described § 87(2)(b)'s behavior as "erratic" and noted that § 87(2)(b) stated that she "had a right to be scared" as a "white lady in the Bronx surrounded by all those black people" [06 Board Review].

§ 87(2)(g)

it is recommended that **Allegation A** be closed as **unsubstantiated**.

Mediation, Civil and Criminal Histories

- § 87(2)(b) initially decided to mediate her complaint but changed her mind and opted for an investigation over three months later.
- As of January 22, 2018, no Notice of Claim had been filed for this incident [03 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [05 Board Review].
- PO Reyes has been a member of the NYPD for three years. This is the first CCRB complaint filed against her.

Squad: 7

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date